

Hi Lead Infotech (Pvt.) Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 29 May 2023 · 2023:AHC:119830-DB · Writ - C No. 18537 of 2023 · **Disposed; objections to Chief Engineer under clause 4.6**

HEADNOTE

Where the Executive Engineer prepares a clause 4.6 estimate on the instructions of the Superintendent Engineer who sanctioned the load, the consumer's remedy under clause 4.6 of the U.P. Electricity Supply Code, 2005 is an objection before the Chief Engineer. The writ was disposed of with liberty to file fresh objections within two weeks, including against GST included in the estimate on supplies purchased by the consumer, to be decided in accordance with law within two months and by 15 August 2023.

FACTUAL SUMMARY

Hi Lead Infotech (Pvt.) Ltd. challenged an estimate dated 22 December 2022 prepared by the Executive Engineer, Electricity Urban Distribution Division-III, Paschimanchal Vidyut Vitran Nigam Ltd., Gautam Budh Nagar, under clause 4.6 of the Supply Code, 2005. The estimate followed instructions of the Superintendent Engineer, who had sanctioned the load. The company also disputed GST charged in the estimate on materials it had bought itself, and said an objection already lay before the Chief Engineer, though that paper was not on the writ record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6

Objection to an estimate prepared under clause 4.6

HOLDING

Because the Executive Engineer prepared the clause 4.6 estimate on the instructions of the Superintendent Engineer who had sanctioned the load, the consumer's remedy is to file objections before the Chief Engineer under clause 4.6. Fresh objections against the estimate dated 22.12.2022, including the GST charged on supplies purchased by the consumer, may be filed within two weeks and shall be decided by the Chief Engineer in accordance with law within two months and in any case by 15 August 2023. ¶ 3-7

PRINCIPLE TAGS

estimate-objection-before-chief-engineer

The Court treated clause 4.6 as the objection remedy before the Chief Engineer where the Executive Engineer's estimate was drawn on the sanctioning Superintendent Engineer's instructions, and left both the estimate and the GST included in it to that forum to decide in accordance with law. ¶ 3-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ESTIMATE DATED 22.12.2022 WAS CORRECT, AND WHETHER GST COULD BE INCLUDED ON SUPPLIES PURCHASED BY THE CONSUMER

Both points were left to the Chief Engineer to decide on objections in accordance with law. ¶ 6-7